

23STCV18136 23STCV18136

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-06-30

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MOTION FOR
DETERMINATION OF GOOD FAITH SETTLEMENT

Motion filed on May 8, 2026.

MOVING PARTY: Defendant/Cross-Complainant/Cross-Defendant
Angelina Sanchez

RESPONDING PARTY: Defendants/Cross-Complainants Warner
Media, LLC, Cooler Waters Productions, LLC, and Scott Jay Gochis

NOTICE: OK

RELIEF REQUESTED: Determination that the \$75,000 settlement between Plaintiff Walter Aviles Linares and Defendant Angelina Sanchez was made in good faith under Code of Civil Procedure sections 877 and 877.6, dismissal of pending pleadings against Sanchez with prejudice, and bar of equitable comparative contribution and partial or comparative indemnity claims against Sanchez.

RULING: Granted.

BACKGROUND

On July 31, 2023, Walter Aviles Linares (Plaintiff) filed this action against Scott Jay Gochis (Defendant Gochis), Warner Media, LLC, Cooler Waters Productions, LLC, Angelina Sanchez (Defendant Sanchez), and others, asserting one cause of action for negligence.

On August 2, 2024, Defendant Gochis, Warner Media, LLC, and Cooler Waters Productions, LLC (collectively, Warner Defendants) filed a cross-complaint against Defendant Sanchez asserting causes of action for (1) equitable indemnity; (2) contribution; (3) declaratory relief; and (4) apportionment of fault.

On August 29, 2025, Defendant Sanchez filed a cross-complaint against Warner Defendants asserting causes of action for (1) indemnification; (2) apportionment of fault; and (3) declaratory relief.

On March 31, 2026, Plaintiff executed a Release of All Claims in favor of Defendant Sanchez for \$75,000, with payment contingent on a good faith settlement determination. (Zinn-McBride Decl. ¶ 7.)

Defendant Sanchez filed the instant motion on May 8, 2026, supported by the declaration of Emily T. Zinn-McBride. Warner Defendants opposed on June 12, 2026, supported by the declarations of Defendant Gochis and Carol Girgis. Defendant Sanchez replied on June 23, 2026.

Plaintiff alleges that Defendants, including Defendant Gochis and Defendant Sanchez, owned and operated a vehicle, that Plaintiff was driving a Ford, and that Defendants negligently entrusted, managed, maintained, drove, and operated a vehicle on SR 2 so as to collide with Plaintiff's vehicle. (Complaint ¶¶ 6-9.) Defendant Sanchez alleges the accident was caused in whole or in part by the negligence of Warner Defendants. (Id. at 3.) Warner Defendants allege Defendant Sanchez was legally responsible in some manner for the events alleged in Plaintiff's complaint and was responsible in whole or in part for Plaintiff's alleged injuries. (Id. ¶¶ 7, 11, 13, 17-18.)

LEGAL STANDARD

A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further

claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault."
(C.C.P. §877.6(c).)

There is no precise yardstick for measuring "good faith" of a settlement with one of several tortfeasors. But it must harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. To accomplish this, the settlement must be within the "reasonable range" (within the "ballpark") of the settling tortfeasor's share of liability for the plaintiff's injuries—taking into consideration the facts and circumstances of the particular case. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal. 3d 488, 499.)

Whether the settlement was within the "good faith ballpark" is to be evaluated on the basis of information available at the time of settlement, including: (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) a recognition that a settlor should pay less in settlement than if found liable after a trial; (4) the allocation of the settlement proceeds among plaintiffs; (5) the settlor's financial condition and insurance policy limits, if any; and (6) evidence of any collusion, fraud, or tortious conduct between the settlor and the plaintiffs aimed at making the non-settling parties pay more than their fair share. (*Id.*)

"The party asserting lack of good faith (in a settlement) shall have the burden of proof on that issue."
(C.C.P. §877.6(d).)

DISCUSSION

The Court finds the settlement between Plaintiff and Defendant Sanchez was made in good faith.

Defendant Sanchez contends she was not physically involved in the collision, made no contact with any party, and stopped after the accident to render assistance and provide contact information as a witness. (Zinn-McBride Decl. ¶ 3.) Warner Defendants rely on Defendant Gochis's declaration, the police report, and Warner Defendants' internal incident report to show Defendant Sanchez cut off Defendant Gochis and caused him to swerve

into Plaintiff. (Gochis Decl. ¶ 2; Girgis Decl. ¶¶ 2, 5, Exs. A, D.) However, Plaintiff testified that he did not see Defendant Sanchez's gray vehicle before the accident, first saw it after the accident, and knew why it pulled over only from what Defendant Gochis told him. (Zinn-McBride Decl. ¶ 10, Ex. A at 31:17-32:24.) The police report likewise notes that Plaintiff could not confirm Defendant Gochis's account, saw only Defendant Gochis's vehicle enter his lane, and could not positively identify Defendant Sanchez's vehicle as cutting off Defendant Gochis. (Girgis Decl., Ex. A at 6.) The officer also noted no physical evidence, investigative leads, or independent witnesses to support further follow-up. (Id. at 5.)

Plaintiff's discovery responses identify past medical bills of approximately \$528,221, future medical care in an unspecified amount, and general damages including emotional distress, pain and suffering, disfigurement, disability, impaired enjoyment of life, susceptibility to future harm or injury, and shortened life expectancy. (Girgis Decl. ¶¶ 3-4, Exs. B-C.)

In light of the disputed liability record, and in recognition that Defendant Sanchez should pay less in settlement than if found liable after trial, the Court finds the \$75,000 settlement offered falls within the reasonable range of Defendant Sanchez's share of liability for Plaintiff's injuries. Although Defendant Sanchez denies liability, she agreed to settle Plaintiff's claims against her for \$75,000. (Zinn-McBride Decl. ¶ 7.) Defendant Sanchez represents that the settlement is funded by two applicable automobile liability policies, one with limits of \$50,000 and one with limits of \$25,000. (Mot. at 9.) Warner Defendants acknowledge that Defendant Sanchez offered her maximum insurance policy coverage. (Opp. at 6.) "When the insurance company for a settling defendant pays its total available policy limits, that is very strong evidence of a 'good faith' settlement, absent evidence of collusion or grossly inappropriate allocation or apportionment of the settlement proceeds to injure the nonsettling alleged tortfeasors." (Fisher v. Superior Court (1980) 103 Cal.App.3d 434, 445.) Warner Defendants identify no evidence of collusion, fraud, or tortious conduct aimed at injuring their interests.

Warner Defendants separately argue the settlement is deficient because Defendant Sanchez did not allocate the settlement among issues, injuries, and parties. This is a single-plaintiff personal injury action with multiple defendants arising from one motor vehicle collision. The settlement is an all-cash \$75,000 settlement resolving Plaintiff's claims against Defendant Sanchez arising from that collision. "In the typical

one-plaintiff, multiple-defendants, personal injury action each tortfeasor is potentially liable for the same injury to the plaintiff. Therefore the full settlement by one defendant will offset a judgment against other tortfeasors; no allocation of the settlement is required.” (Alcal Roofing & Insulation v. Superior Court (1992) 8 Cal.App.4th 1121, 1124.)

The Court finds Warner Defendants have not met their burden to show that the settlement between Plaintiff and Defendant Sanchez is so far out of the ballpark as to defeat good faith. The motion is granted.

CONCLUSION

Defendant Sanchez’s Motion for Determination of Good Faith Settlement is GRANTED.